

OCCUPIERS' LIABILITY ACT 1984

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Signposts

- OLA 1957 Review
- OLA 1984 Scope
- OLA 1984 text and cases
- * Remember to check in



Occupiers' Liability

- Liability of occupiers for people injured or property where loss/injury results from danger related to state of occupier's premises
- Such liability developed under the common law (Now primarily governed by statute)
 - *Partial codification of negligence liability (duty and breach)*
- Occupiers Liability Act 1957 – liability in respect of lawful **visitors**
- Occupiers Liability Act 1984 – liability in respect of **trespassers/ non-visitors**

Pre-requisites for the OLAs

- 1) D is an occupier
- 2) Incident occurred at relevant premises under the OLAs
- 3) Danger is an occupancy (static) danger, as opposed to activity

OLA 1957 Review

- An occupier (degree of control) of the premises
- Codified duty and breach (partially codified negligence)
- Common law causation and remoteness
- For lawful entrants and visitors
- Consider warnings (but usually in need of 'more')
- Consider special classes of visitor (independent contractors, children, etc)

OLA 1984

■ Background to the Act

- Duty owed to; '**persons other than visitors** in respect of any risk of their suffering injury on the premises'
- Duty owed if occupier AWARE of danger or has reasonable grounds to believe that it exists and the risk is one in relation to which he may reasonably be expected to offer protection; s 1 (3)
 - *Knowledge required of danger/ reasonable grounds to believe risk exists*
 - *Occupier not required to 'seek out' existence of dangers*
 - *Does not mean 'ought to know' Swain v Natui Ram Puri [1995] WLUK 22*

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■ Duty of care ...

- *To establish duty, all three must be met (s 1 (3)):*
 - Aware or reasonable grounds to believe danger existed;
 - D knew, or had reasonable grounds to believe, C was in the vicinity of danger or that D might come in the vicinity
 - The risk is one against, in all circumstances of the case, D might reasonably be expected to have offered C some protection.
- *To take such care as is reasonable in the circumstances to see that non visitor **is not injured***

Non-visitors: OLA 1984

- **Section 1** of the Act defines non-visitors in terms of them not being visitors for the purposes of the 1957 Act.
 - *Non-visitors clearly include trespassers.*
- Non-visitors also include those who simply use a private right of way: *Vodden v Gayton* [2001] PIQR P52 (user of a private right of way is a non-visitor).
- **Section 1(7)** of the Act denies any duty in respect of those using the highway to cross D's land.
- Note also **section 1(6A)**: no duty to ramblers meeting natural hazards while roaming

OLA 1984: Defining the danger

- Truant boys 'surfing' across trains cars;
- Boys fell and suffered limb amputations;
- The danger was 'surfing';
- Danger must be more widely defined than 'death by moving trains'
 - *Scott v Associated British Ports* [CA. 22 Nov 2000]

Dangers

Obvious (D not liable)

- Diving into shallow water
- Slipping on algae-covered rocks
- Climbing a spiked fence
- Horse riding on a beach with many holes/soft sand
- Being sprung off a 'bouncy house' onto a hard surface
- Swimming at night in murky water

Nonobvious (liable)

- - Stairs/landings with no railings or unstable railings
- - Poisonous berries (children)
- - poorly constructed window frame, causing brick collapse
- - gym equipment causing finger amputation
- - improperly secured loft ladder

OLA 1984

- *Danger in regard to which the occupier will be expected to exercise due care must emanate from either the 'state of the premises or things done or omitted to be done on them,' s 1 (1) (a)*

■ *Tomlinson v Congleton* [2004]

- *In order for a duty to arise, occupier must be aware or have reason to believe that a danger exists AND that someone is likely to come into contact with it*

■ *Donoghue v Folkestone* [2003]

- *Winter diving – occupier knew people dived in summer but not in winter – no liability*

Tomlinson v Congleton [2003] UKHL 47

- 18 yr old C visited a park with an artificial lake;
- Dove into shallow water and was paralysed;
- Warnings were posted, leaflets distributed, and ranger patrols attempted to prevent swimming;
 - *Were the precautions sufficient and reasonable?*
- Should this claim be under the 1957 Act or the 1984 Act?
- Was this an appropriate claim under the OLAs?

Tomlinson v Congleton

- - “Mr Tomlinson was a person of full capacity who voluntarily and without pressure or inducement engaged in an activity which had an inherent risk. The risk was that he might not execute his dive properly and so sustain injury. Likewise, a person who goes mountaineering incurs the risk that he might stumble or misjudge where to put his weight. In neither case can the risk be attributed to the state of the premises. Otherwise any premises can be said to be dangerous to someone who chooses to use them for some dangerous activity.... The risk only arose out of what he chose to do and not out of the state of the premise;” per Lord Hoffmann

On proving breach...

- - Much like proving breach in a regular negligence analysis
- - Reasonable foreseeability
- - Potential precautionary steps?
- - Should those steps have been taken by a reasonable person in D's position?
- - NO requirement for precautionary steps for obvious dangers

Where the OLAs do *not* apply

- *Public right of way*
 - *E.g.*, injury from a pothole (use ordinary negligence or Highways Act 1980)
- *Passers by or not on property*
 - *Eg*, object thrown from property
- *Non-humans*
 - *E.g.*, pets or other animals (like bees! *Tutton v AD Walter Ltd*)
 - *But see League Against Cruelty to Animals*

Defences: Warnings, the 'statutory escape hatch'

- - What constitutes a warning?
- - Warnings – s 1 (5) OLA 1984
 - *“Any duty owed by virtue of this section in respect of a risk may, in an appropriate case, be discharged by taking such steps as are reasonable in all the circumstances of the case to give warning of the danger concerned or to discourage persons from incurring the risk”*
- - Giving warning of *the danger concerned* (rather than of danger generally) provides an absolute defence.

Defences: *Volenti* and Contributory Neg.

- *Volenti* – s 1 (6) OLA 1984
- Contributory Negligence
 - *Ratcliffe v McConnell [1999] EWCA Civ 2679*
 - Claimant drunk and broke into a swimming pool
 - Dove into shallow water and was paralysed
 - What has the danger to be warned of?

Property Loss

- S1(8) Where a person owes a duty by virtue of this section, he does not, by reason of any breach of the duty, incur any liability in respect of any loss of or damage to property.

OLA Codification Summary

- Duty:
 - *Visitors: s 2(1) OLA 1957*
 - *Trespassers: s 1(3) OLA 1984*
- Breach:
 - *Visitors: establish standard of care s2(3)(a); prove breach; consider any mitigations, specialist visitors s2(3)(b), warnings s2(4)(a); and/or independent contractors s2(b)(b)*
 - *Trespassers: standard of care, breach, but only warnings s1(5)*
- Causation: common law
- Remoteness: common law

Next week...

- Privacy and defamation.